

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS**

ROBERT GRIEVES,

Plaintiff,

-against-

**THE CITY OF NEW YORK, LT. ALAN
CHAU,**

Defendants.

Index No.:

SUMMONS

Plaintiff designates Kings County as
the place of trial

To the above-named Defendants:

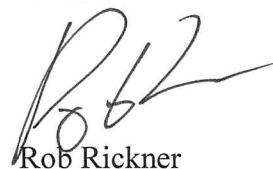
You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

The basis of venue is the location where the claims arose.

Dated: New York, New York
September 6, 2021

Rickner PLLC

By:



Rob Rickner

14 Wall Street Suite 1603
New York, New York 10005
Phone: (212) 300-6506
Fax: (888) 390-5401
Attorney for Plaintiff

TO:

THE CITY OF NEW YORK
New York City law Department
100 Church Street
New York, New York 10007

LT. ALAN CHAU
25 Central Ave.
Brooklyn, NY 11206

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS****ROBERT GRIEVES,**

Plaintiff,

-against-

**THE CITY OF NEW YORK, LT. ALAN
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VERIFIED COMPLAINT

Plaintiff Robert Grieves, by his attorneys, Rickner PLLC, complaining of the Defendants, alleges, upon information and belief and personal knowledge:

NATURE OF THE CASE

1. This is a civil rights action brought against the City of New York and members of the New York City Police Department ("NYPD"), who violated Plaintiff's rights under the Constitution of the United States and the Constitution of the State of New York, and committed torts actionable under the common laws and statutes of the State and New York.

JURISDICTION

2. This action is brought pursuant to 42 U.S.C. §§ 1983 and 1988 for violations of Plaintiffs rights under the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States, Plaintiff's rights under Article 1, Section 12 of the Constitution of the State of New York, and the common laws of the State and New York.

3. An award of costs and attorneys' fees is authorized pursuant to 42 U.S.C. § 1988.

4. Venue is properly laid in the Supreme Court of the State of New York, County of Kings, because the Plaintiff's claims arose in the County of Kings.

5. Plaintiff has been damaged in a sum which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

PARTIES

6. Plaintiff is, and was at all times relevant to this action, a resident of Kings County in the State of New York.

7. Defendant the City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department that acts as its agent in the area of law enforcement and for which it is ultimately responsible.

8. Defendant the City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the NYPD.

9. Defendant Lt. Alan Chau (hereinafter "Lt. Chau") was at all relevant times described herein an NYPD officer, employed by the City of New York. At all relevant times described herein he was acting under color of New York state law, and acting in the course and scope of his duties. He is sued in his individual capacity.

10. Lt. Chau is entitled to indemnification by the City of New York under New York law for any liability arising from his conduct described herein.

11. Lt. Chau is entitled to indemnification by the City of New York pursuant to contract for any liability arising from his conduct described herein.

THE VIOLATION OF PLAINTIFF'S CIVIL RIGHTS

12. On August 30, 2019, Plaintiff was lawfully in the vicinity of 984 Schenectady Avenue.

13. Plaintiff was at a perfectly legal outdoor party when Lt. Chau came in and claimed liquor was illegally being sold.

14. Plaintiff was detained and arrested by the Lt. Chau without probable cause.

15. The Lt. Chau assaulted and battered Plaintiff, and used excessive force in arresting Plaintiff.

16. Plaintiff was wrongfully searched.

17. The Lt. Chau refused to provide Plaintiff with medical treatment.

18. Plaintiff was detained as a result of the Lt. Chau's actions.

19. The prosecutors declined to prosecute the case.

20. Lt. Chau, then a sergeant, was assigned to find parties, accuse them of selling liquor, and then makes arrests.

21. Plaintiff obtained a list of arrests related to Lt. Chau's pattern of crackdowns on legal parties. From August 1, 2016 through October 1, 2019, there were 626 of these arrests at the 67th Precinct. Lt. Chau, who was handling these crackdowns, was either the arresting officer or involved with these arrests.

22. The data shows that these arrests were both meritless and racist. As of October 1, 2019, 392 of these arrests were sealed, meaning the prosecutions had been dismissed with prejudice in favor of the accused. On information and believe, by the time of this filing, almost all of them have been dismissed and sealed. Out of the 234 arrests that were not sealed, and data

was available, 213 arrests were of black or latinx people – i.e. 91%. Other precincts, with substantially more white people, do not face the same crackdowns.

THE INDIVIDUAL OFFICERS' HISTORY OF MISCONDUCT

23. Lt. Chau has a history of disciplinary action and violating people's civil rights while employed by the NYPD.

24. In 2015 and 2016, Lt. Chau was a sergeant in the notoriously violent SRG 3 Group within the NYPD. But he was brought up on disciplinary charges for being a poor supervisor and shirking his responsibilities. He lost his position at SRG 3, and was formally disciplined by the NYPD after a trial.

25. At that point he was assigned to be the Conditions Sergeant at the 67th Precinct where he carried out a series of illegal arrests, targeting black and latinx peoples' families and friends who were just trying to have a good time. He repeatedly made false accusations that people were selling liquor without a license.

26. Lt. Chau's illegal arrests have resulted in multiple lawsuits:

- a. In *Alcine v. The City of New York, et al.*, 523716/2019 (Kings), Lt. Chau was sued for numerous civil rights violations.
- b. In *Andrews v. The City of New York, et al.*, 518093/2019 (Kings), Lt. Chau was sued for illegally entering a home and making false accusations that someone was selling liquor without a license.
- c. In *Babb v. The City of New York, et al.*, 508225/2019 (Kings), Lt. Chau was sued for illegally entering an apartment and assaulting the occupant.
- d. In *Bellony v. The City of New York, et al.*, 18-CV-05127 (EDNY), Lt. Chau was accused of violating someone's rights by falsely accusing them of a felony.

- e. In *Demas, et al. v. The City of New York, et al.*, 514362/2019 (Kings) Lt. Chau was sued for illegally arresting people at a free public concert by the Pan Yard players, and falsely accusing them of selling liquor without a license.
- f. In *Downer v. The City of New York, et al.*, 19-CV-05100 (EDNY), Lt. Chau was sued for falsely accusing someone for selling liquor without a license.
- g. In *Durden, et al. v. The City of New York, et al.*, 21-CV- 01539 (EDNY), Lt. Chau was accused of violating multiple peoples' rights.
- h. In *Jackson, et al. v. The City of New York, et al.*, 18-cv-02214 (EDNY), Lt. Chau was sued for illegally entering an apartment, among other civil rights violations.
- i. In *Jean v. The City of New York, et al.*, 504931/2018 (Kings), Lt. Chau was sued for falsely accusing someone of selling liquor without a license.
- j. In *Marsh v. The City of New York, et al.*, 18-cv-01883 (EDNY), Lt. Chau was sued for making illegal arrests and falsely accusing people of selling liquor without a license.
- k. In *McCallister v. The City Of New York, et al.*, 18-cv-02672 (EDNY), Lt. Chau was sued for making false statements and otherwise violating multiple peoples' civil rights.
- l. In *Rhem v. The City of New York, et al.*, 527758/2019 (Kings), Lt. Chau was sued for making false statements and otherwise violating the plaintiff's civil rights.
- m. In *Stewart v. The City of New York, et al.*, 501784/2018 (Kings), Lt. Chau was sued for shutting down a legal event and falsely accusing people of selling liquor without a license.

- n. In *Stewart v. The City of New York, et al.*, 501781/2018 (Kings), Lt. Chau was sued for shutting down a legal event and falsely accusing people of selling liquor without a license.
- o. In *Theodat v. The City of New York, et al.*, 518766/2018 (Kings), Lt. Chau was sued for falsely accusing people of selling liquor without a license.
- p. In *Watson v. The City of New York, at al.*, 515244/2018 (Kings), Lt. Chau was sued for falsely accusing people of selling liquor without a license.

27. Many of these cases are still pending, but the ones that are pending have cost the city hundreds of thousands of dollars.

28. Lt. Chau has also faced 11 complaints from citizens, some of which were substantiated by the Citizens Complaint Review Board.

29. Despite these repeated incidents of misconduct, the City of New York of New York has failed to meaningfully discipline or properly supervise Lt. Chau. In fact they gave him a promotion.

THE INJURIES TO PLAINTIFF

30. This action seeks damages on behalf of Plaintiff for the extraordinary emotional pain and suffering, loss of liberty, and injuries to his person, that Plaintiff was forced to endure as a consequence of the Lt. Chau decidedly wrongful actions.

31. The Lt. Chau' actions were wanton, reckless, and malicious, as well as in blatant disregard of Plaintiff's civil rights, and as such the Lt. Chau are liable for punitive damages, as is the City of New York under the doctrine of *respondeat superior*.

32. All of the causes of action pleaded herein fall within one or more of the exceptions set forth in New York's Civil Practice Law & Rules 1602 with respect to joint and several liability.

**FIRST CLAIM FOR RELIEF:
EXCESSIVE FORCE UNDER 42 U.S.C. § 1983
AGAINST THE LT. CHAU**

33. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

34. Lt. Chau used physical force against Plaintiff.

35. Plaintiff's seizure and detention at the hands of the Lt. Chau was made in the absence of probable cause. The unwanted physical contact was therefore unlawful and unconstitutional.

36. Even assuming arguendo that Plaintiff's arrest was lawful, Lt. Chau engaged in the use of force that was excessive, malicious, gratuitous, and with the intention of inflicting physical and emotional harm to plaintiff.

37. That by virtue of the aforementioned acts by Lt. Chau, Plaintiff was deprived civil rights guaranteed under the Fourth Amendment to the United States Constitution to be free from unreasonable or unlawful searches and seizures, and Lt. Chau therefore is liable to Plaintiff for damages under 42 U.S.C. § 1983.

38. As a result of the above unconstitutional conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries.

39. As a result of the above unconstitutional conduct, Lt. Chau is liable for punitive damages.

**SECOND CLAIM FOR RELIEF:
ILLEGAL SEARCH UNDER 42 U.S.C. § 1983
AGAINST LT. CHAU**

40. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

41. Lt. Chau searched Plaintiff or caused him to be searched without probable cause to do so.

42. Even if there was probable cause, the manner in which the search was conducted was unreasonable.

43. That by virtue of the aforementioned acts by Lt. Chau, Plaintiff was deprived of his civil rights guaranteed under the Fourth Amendment to the United States Constitution to be free from unreasonable or unlawful searches and seizures, and Lt. Chau therefore is liable to Plaintiff for damages under 42 U.S.C. § 1983.

44. As a result of the above unconstitutional conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries

45. As a result of the above unconstitutional conduct, the Lt. Chau is liable for punitive damages.

**THIRD CLAIM FOR RELIEF:
FALSE ARREST UNDER 42 U.S.C. § 1983
AGAINST LT. CHAU**

46. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

47. Lt. Chau restrained and arrested Plaintiff without probable cause.

48. That by virtue of the aforementioned acts by Lt. Chau, Plaintiff was deprived of civil rights guaranteed under the Fourth Amendment to the United States Constitution to be free from unreasonable or unlawful searches and seizures, and Lt. Chau therefore is liable to Plaintiff for damages under 42 U.S.C. § 1983.

49. As a result of the above unconstitutional conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

50. As a result of the above unconstitutional conduct, the Lt. Chau is liable for punitive damages.

FOURTH CLAIM FOR RELIEF:
MONELL CLAIMS AGAINST THE CITY OF NEW YORK

51. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

52. The City of New York is liable for the conduct of the Lt. Chau under *Monell v. Department of Soc. Svcs.*, 436 U.S. 658 (1978) because the driving force behind these constitutional violations were the *de facto* and explicit policies and practices of the NYPD and the City of New York.

53. Lt. Chau engaged in a pattern of falsely arresting people of color, almost all related to false accusations of selling liquor without a license. Not only were these charges almost always dismissed, they resulted in 16 lawsuits (so far). But instead of stopping Lt. Chau, they promoted him, effectively ratifying his misconduct.

54. As a result, the City of New York is liable for any damages caused, except for punitive damages.

WHEREFORE, Plaintiff demands the following relief jointly and severally against Lt.

Chau, as well as the City of New York:

- a. Compensatory damages;
- b. Punitive damages;
- c. The convening and empaneling of a jury to consider the merits of the claims herein;
- d. Costs and interest and attorney's fees;
- e. Such other and further relief as this court may deem appropriate and equitable.

Dated: New York, New York
September 6, 2021

Rickner PLLC

By:



Rob Rickner

14 Wall Street Suite 1603
New York, New York 10005
Phone: (212) 300-6506
Fax: (888) 390-5401
Attorney for Plaintiff

ATTORNEY'S VERIFICATION

I, Rob Rickner, an attorney duly admitted to practice before the Courts of the State of New York, affirm the following to be true under the penalties of perjury:

- 1) I am the attorney of record for the Plaintiff.
- 2) I have read the annexed Verified Complaint and know the contents thereof, and the same are true to my knowledge, except those matters therein which are alleged upon information and belief, and as to those matters, I believe them to be true. My beliefs, as to those matters therein not stated upon knowledge, are based upon facts, records, other pertinent information contained in my files.
- 3) This verification is made by me because Plaintiff does not reside in the County where I maintain my offices.

Dated: New York, New York
September 6, 2021

Rickner PLLC

By:



Rob Rickner

14 Wall Street Suite 1603
New York, New York 10005
Phone: (212) 300-6506
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Attorney for Plaintiff